

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 940

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO EDUCATION; AMENDING SECTION 33-5502, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE CREATION OF THE IDAHO DIGITAL LEARNING ACADEMY AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 33-5504, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE DUTIES OF THE ACADEMY BOARD OF DIRECTORS AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 33-5505, IDAHO CODE, TO REVISE DEFINITIONS AND TO DEFINE TERMS; AMENDING SECTION 33-1020, IDAHO CODE, TO REVISE PROVISIONS REGARDING IDAHO DIGITAL LEARNING ACADEMY FUNDING; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 33-5502, Idaho Code, be, and the same is hereby amended to read as follows:

33-5502. CREATION -- LEGISLATIVE FINDINGS -- GOAL. (1) There is hereby created the Idaho digital learning academy, a ~~public school choice~~ learning environment ~~which that~~ joins the best technology with the best instructional practices. The Idaho digital learning academy as provided for in this chapter, is not a single department of state government unto itself, nor is it a part of any of the twenty (20) departments of state government authorized by section 20, article IV, of the constitution of the state of Idaho, or of the departments prescribed in section 67-2402, Idaho Code. It is legislative intent that the Idaho digital learning academy operate and be recognized not as a state or local agency or department, but as a governmental an entity whose creation has been authorized by the state, ~~much in the manner as other single purpose districts.~~

(2) The legislature finds that it is in the best public interest to create the Idaho digital learning academy based on findings that indicate:

(a) Technology continues to impact ~~all facets of life, including the education of students of school age and adult learners~~ the education of students in this state;

(b) Systems for delivery of education are as diverse as the learners; and

(c) ~~Public school systems~~ Idahoans are seeking high quality educational choices ~~within the public system,~~ and schools and other education providers are aligning curriculum and assessment with state achievement standards; and.

~~(d) The development of a comprehensive digital learning environment is cost prohibitive for individual school districts.~~

(3) The goal of the digital learning academy is to provide choice, accessibility, flexibility, quality, and equity in curricular offerings for students in this state. The digital learning academy shall function as a resource to fill instructional gaps and is not intended to supplant regularly

1 scheduled courses or full instructional programs offered by a student's lo-
2 cal school district or public charter school. Courses offered shall include
3 credit recovery, dual credit, courses not offered in small or rural school
4 districts, courses required by the state of Idaho for graduation, and over-
5 load courses.

6 SECTION 2. That Section 33-5504, Idaho Code, be, and the same is hereby
7 amended to read as follows:

8 33-5504. DUTIES OF THE ACADEMY BOARD OF DIRECTORS. The board shall be
9 responsible for ensuring that academy procedures and courses are in compli-
10 ance with the rules of the state board of education and applicable statutes
11 of the state of Idaho. In addition, the board shall:

12 (1) Recommend policies to be established by rule of the state board for
13 effecting the purposes of this chapter.

14 (2) Employ or contract with staff as necessary and purchase such sup-
15 plies and equipment as are necessary to implement the provisions of this
16 chapter, which purchases shall be exempt from the state procurement act in
17 chapter 92, title 67, Idaho Code. The percentage of personnel costs spent on
18 staff classified as administration shall not exceed thirty percent (30%) of
19 the total budget.

20 (3) ~~To enter~~ Enter into contracts with any other governmental or public
21 agency whereby the board agrees to render services to or for such agency in
22 exchange for a charge reasonably calculated to cover the costs of rendering
23 such service.

24 (4) ~~To accept~~ Accept, receive, and utilize any gifts, grants, or funds
25 and personal and real property that may be donated to it for the fulfillment
26 of the purposes outlined in this chapter.

27 (5) Employ or contract with necessary faculty and teaching staff who
28 are fully certificated Idaho teachers or administrators, to design and de-
29 liver planned curriculum content. The academy shall be exempt from the pro-
30 visions of sections 33-513, 33-514, 33-514A, 33-515 and 33-515A, Idaho Code,
31 and shall be exempt from chapter 53, title 67, Idaho Code. All teaching and
32 educational staff of the academy shall be exempt, at will employees. The
33 number of such staff shall largely be dictated by the number of courses under
34 development, the number of courses offered, and the number of students par-
35 ticipating in academy programs.

36 (6) Obtain ~~housing~~ office space where actual operations of the academy
37 are conducted by academy staff.

38 (7) Contract with a service provider for delivery of academy courses
39 online which shall be accessible twenty-four (24) hours a day, seven (7) days
40 a week.

41 (8) Ensure that the academy is accredited as established by rule of the
42 state board of education.

43 (9) Develop policy for earning credit in courses based on mastery of
44 the subject, demonstrated competency, and meeting the standards set for each
45 course.

46 (10) Provide for articulating the content of certain high school
47 courses with college and university courses in order to award both high
48 school and undergraduate college credit.

1 (11) Develop policies and practices ~~which~~ that provide strict applica-
2 tion of time limits for completion of courses.

3 (12) Develop policies and practices on accountability, both by the
4 student and the teacher, and in accordance with the provisions of section
5 33-5507, Idaho Code.

6 (13) Develop policies and practices that prioritize courses provided
7 in section 33-5502, Idaho Code.

8 ~~(13) (14) Manage the moneys disbursed to the academy board from the su-~~
9 ~~perintendent received by the academy.~~

10 ~~(14) (15) Set~~ Subject to approval by the state board of education, set
11 fees charged to school districts for student participation; fees charged
12 for summer school; and fees charged to students and adults for professional
13 development offerings any user of academy courses, including but not lim-
14 ited to public school districts, public charter schools, private schools,
15 individual students, and other public or private entities. Fees for all
16 courses required by the state department of education for graduation shall
17 be no more than forty dollars (\$40.00). Fees for all courses not required for
18 graduation shall be at least one hundred dollars (\$100). Fees shall offset
19 the total state reimbursement, not to exceed four hundred forty-five dol-
20 lars (\$445). Private entities shall not receive any state reimbursement and
21 shall be subject to the full course fee.

22 ~~(15) (16) Contract with a certified public accounting firm to conduct an~~
23 ~~annual audit of the Idaho digital learning academy.~~

24 SECTION 3. That Section 33-5505, Idaho Code, be, and the same is hereby
25 amended to read as follows:

26 33-5505. DEFINITIONS. As used in this chapter:

27 (1) "Academy board," also referred to in this chapter as "the board"
28 means the board of directors of the Idaho digital learning academy as such
29 board is created in section 33-5503, Idaho Code.

30 ~~(2) "Host district" means an Idaho school district where the fiscal op-~~
31 ~~erations of the Idaho digital learning academy are housed until January 1,~~
32 ~~2009.~~

33 (2) "Custom section" means an Idaho digital learning academy course
34 in which all enrollments are from one (1) school district or public charter
35 school.

36 (3) "Emergency clause" means that a custom section is reimbursable when
37 an unexpected departure of the teacher of record occurs and reimbursement
38 is approved by the board or when, after documented recruitment efforts are
39 made, the school is unable to hire a qualified teacher for the position.

40 ~~(3) (4) "Idaho digital learning academy" means an online educational~~
41 ~~course delivery program organized as a that is fully accredited school with~~
42 ~~statewide capabilities for the exclusive purpose of delivering accredited~~
43 ~~courses to Idaho resident students at no cost to the student unless the stu-~~
44 ~~dent enrolls in additional courses beyond full-time enrollment. Partici-~~
45 ~~ipation in the academy by public school students shall be in compliance with~~
46 ~~academy and local school district policies. Adult learners and out-of-state~~
47 ~~students shall pay tuition commensurate with rates established by the state~~
48 ~~board with the advice of the superintendent, and such funds shall be included~~

~~in the budget and audit of the academy's fiscal records.~~ in grades 6 through 12.

~~(4)~~ (5) "State board" means the Idaho state board of education. The board is authorized and directed, with the advice and recommendation of the academy board of directors, to promulgate rules to implement the provisions of this chapter.

~~(5)~~ (6) "Superintendent" means the Idaho state superintendent of public instruction.

SECTION 4. That Section 33-1020, Idaho Code, be, and the same is hereby amended to read as follows:

33-1020. IDAHO DIGITAL LEARNING ACADEMY FUNDING.

(1)(a) An amount of four hundred forty-five dollars (\$445) per enrollment shall be distributed to support the Idaho digital learning academy, created pursuant to chapter 55, title 33, Idaho Code. For the purposes of this section, an "enrollment" shall be counted each time an Idaho school age child enrolls in an Idaho digital learning academy ~~class course~~ and continues to be enrolled in such ~~class course~~ past the deadline to withdraw, where such withdrawal would not result in the ~~class course~~ appearing on such child's transcript in any way. If a student disenrolls from an Idaho digital learning academy course within the withdrawal window, the fee shall be returned to the payer. A single child enrolled in multiple ~~classes~~ courses shall count as multiple enrollments. Summer enrollments shall be included in the fiscal year that begins that summer. A registered course shall be eligible for state funding only if:

(i) The student is enrolled in an Idaho school district or public charter school that is not entirely virtual;

(ii) The course is not a driver's education course; and

(iii) The student is not enrolled in a custom section unless the emergency clause is applicable.

(b) If a student wants to enroll in an Idaho digital learning academy course that does not meet the criteria for state funding under this section, such student may enroll in such course if the school district or public charter school pays the fees for the course as set by the state board of education.

(2) The state department of education shall make an estimated distribution of funds to the Idaho digital learning academy by no later than July 31 of each fiscal year, consisting of eighty percent (80%) of the estimated funding for the fiscal year. The balance of all remaining funds to be distributed, pursuant to the calculations in this section, shall be distributed by no later than May 15 of the same fiscal year. The state department of education shall reconcile the enrollments prior to the May 15 payment and withhold or recover any costs necessary to align the funding with verified enrollments. The joint finance-appropriations committee shall consider adjusting the per enrollment amount each legislative session by a percentage increase equal to the percentage increase approved for salary increases for instructional and pupil service staff pursuant to section 33-1004B, Idaho Code, and for administrative and classified staff pursuant to section 33-1004E, Idaho Code.

1 (3) The academy board of directors shall report to the state board of
2 education during the 2027 legislative session on the status of courses and
3 provide recommendations and a strategic plan on how to manage digital learn-
4 ing throughout the state.

5 SECTION 5. An emergency existing therefor, which emergency is hereby
6 declared to exist, this act shall be in full force and effect on and after
7 July 1, 2026.